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Argument for Respondent.

See also *Reagan v. Farmers' Loan & Trust Co.*, 154 U. S. 362; *Tindall v. Wesley*, 167 U. S. 204; *Starr v. C., R. I. & P. Ry.*, 110 Fed. Rep. 3.

The same principle of distinction is applied, in varying language and with greater or less explicitness, in a number of other cases decided since the *Ayers* case, among which are: *In re Tyler*, 149 U. S. 164; *Scott v. Donald*, 165 U. S. 107; *Smith v. Reeves*, 178 U. S. 436; *C. & N. W. Ry. v. Dey* (Brewer, J.), 35 Fed. Rep. 866.

The following cases deal with a state of facts like that in the case at bar and are squarely in conflict with *Fitts v. McGhee*, *supra*, in the view of that case which makes it applicable to the present situation. *Reagan v. Farmers' Loan & Trust Co.*, 154 U. S. 362; *Smyth v. Ames*, 169 U. S. 466; *Prout v. Starr*, 188 U. S. 537; *Gunter v. Atlantic Coast Line*, 200 U. S. 273, 284; *Miss. R. R. Comm. v. Illinois Central*, 203 U. S. 335, 340.

If *Fitts v. McGhee* can be held applicable to the present case, then that decision is unsound in principle and ought to be overruled upon the ground that the Eleventh Amendment should not be given a construction which would tend to impair the full efficacy of the protecting clauses of the Fourteenth Amendment.

It has become the aim of some legislatures to frame their enactments with such cunning adroitness, and to hedge them about with such savage and drastic penalties, as to make it impossible to test the validity of such statutes in the courts save at a risk no prudent man would dare to assume. An apt comment upon this tendency, and upon the character of such legislation, appears in the opinion by Mr. Justice Brewer in *Cotting v. Kansas City Stock Yards Company*, 183 U. S. 79, 99-102.

There is but one effective protection against such legislation—the power that may be exercised by courts of equity, and especially by the Circuit Courts of the United States. If it shall be held that a state statute may be so adroitly framed that the Eleventh Amendment will bar any suit in the Federal